

Chandrapal v. State of U.P. — pending dues relegated to CGRF

High Court of Judicature at Allahabad · Division Bench · 20 February 2020 · Writ-C No. 6217 of 2020 · Writ-C No. 6217 of 2020 · **Writ disposed; pending dues relegated to CGRF under cl. 7.10.**

HEADNOTE

A writ against pending electricity dues is disposed of because the consumer's remedy is an application to the Electricity Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005; if filed, the Forum shall decide it in accordance with law without unnecessary delay.

FACTUAL SUMMARY

Chandrapal invoked the High Court's writ jurisdiction in Writ-C No. 6217 of 2020 against the State of Uttar Pradesh and two others, the third respondent appearing through private counsel, in respect of pending electricity dues. Counsel for the petitioner, the Standing Counsel for the State respondents, and counsel for the third respondent were heard by the Division Bench of Abhinava Upadhyaya and Shamim Ahmed JJ. The petition was disposed of on 20 February 2020 without any adjudication of the outstanding bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF as remedy for pending electricity dues

HOLDING

Where electricity dues are pending, the consumer's remedy is to apply to the Electricity Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005; the writ court will not decide the dues, and any such application shall be considered and decided by the Forum in accordance with law without unnecessary delay. ¶ 1

FLAG Court cites CGRF as Clause 7.10; number recorded as stated, not corrected.

PRINCIPLE TAGS

cgrf-7.10-alternate-remedy Pending electricity dues are to be taken to the Consumer Grievance Redressal Forum under Clause 7.10 rather than decided in writ; an application so filed is to be decided in accordance with law without unnecessary delay. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PENDING ELECTRICITY DUES

Writ disposed by relegating the petitioner to CGRF; no finding on the bill. ¶ 1